

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-04

CROCUS INVESTMENTS, LLC AND CROCUS, FZE,

— vs. —

**MARINE TRANSPORT LOGISTICS, INC. AND ALEKSANDR SOLOVYEV
a/k/a ROYAL FINANCE GROUP INC.**

COMPLAINANTS' STATUS REPORT

Complainants herein submit this Status Report to make the Commission aware of changes in status regarding the above captioned matter as it pertains to complainants' Exceptions to the Presiding Officer's Initial Decision of June 17, 2016 (the "ID") which dismissed the Complaint, as well as Complainants' Second Petition to Reopen the Proceedings, both of which are pending before the Commission.

As the Commission may recall, on November 1, 2018, complainants filed a Status Report wherein complainants explained: a) that there is currently an ongoing Federal litigation involving the parties herein in the U.S. Court for the District of New Jersey, captioned as World Express & Connection, Inc. v. Crocus Investments, LLC et al. U.S.D.C. -- D.N.J. Docket No.: 2:15-cv-08126- KM-MAH, wherein the respondents are named as third-party defendants; and b) that respondents took possession, custody, and control of the subject Formula pleasure boat at issue herein, and that respondents then kept the boat in their warehouse for six (6) months (to wit: 186 days) on the alleged basis that the Formula needed a suitable boat trailer for transporting it by sea (which respondents failed to procure despite having twice collected monies from complainants for the purchase of the trailer).

MTL, Aleksandr Solovyev, RFG, And Others Admitted That They Collected \$5000 From Complainants As Payment For A Trailer For The Formula In The Sum Of \$4,500 And Payment For A Charge For Shipping Documentation In The Sum Of \$500

The Commission may recall that on page “5” of the ID, the Presiding Officer explained as follows:

“...on August 8, 2013, RFG issued invoice #1189AT to Crocus FZE in the amount of \$56,280.00 for purchase of the Formula, \$3,500 for delivery, \$12,000 for loading and shipping the Formula to Dubai, \$500 for commission, \$500 for documentation, and \$4,500 for a trailer, a total of \$77,280. On August 9, 2013, Crocus Investments wired \$59,780 to RFG to pay the \$56,280.00 for the Formula and the \$3,500 for delivery to the port of loading. Complainants did not pay the \$12,000 for loading and shipping the Formula to Dubai, \$500 for commission, \$500 for documentation, or \$4,500 for a trailer. (ALJFF 83-89.)”

The Commission may recall that on page “26” of the ID, the Presiding Officer explained as follows:

“The record shows that Complainants originally intended to ship the Formula to Dubai for repair and resale. On August 7, 2013, RFG sent invoice 1189AT for payment in the amount of \$77,280 to Complainants' employee in Dubai, Andrey Tretyakov, reflecting \$56,280 for the Formula, \$3,500 for delivery, \$12,000 for loading/shipping to Dubai, UAE, \$500 for commission, \$500 for documentation, and \$4,500 for a trailer to load the boat. (FF 75 (CX 031)). Complainants wired \$59,780 on August 9, 2013, to RFG to pay for the Formula (\$56,280.00) and the cost of the delivery to the port of loading (\$3,500), and \$4,950 on December 4, 2013, to pay for the boat trailer.^[1] Complainants never paid the \$12,000 for loading and shipping the Formula to Dubai or the \$500 for Commission and \$500 for documentation. (ALJFF 76, 85, 92.)

¹ This footnote in the ID states that:

“On August 13, 2013, Crocus FZE made a wire transfer of \$5,000.00. Complainants state that this payment was for a trailer for the Formula, Closing Argument Transcript 113, but nothing in the record indicates that the transfer for an amount different from the \$4,500 for a trailer stated in the August 7 and 8 invoices went to RFG or that it was for a trailer.”

In the matter of World Express, *supra*, on March 20, 2019, complainants herein filed a cross-motion for summary judgment against respondents MTL, Aleksandr Solovyev, RFG, and others.² In support of their cross-motion, complainants filed a Statement of Material Facts, pursuant to Fed. R. Civ. P. Rule 56, wherein complainants explained as follows:

“On August 13, 2013, Crocus FZE made a wire transfer of \$5,000.00, Fed Wire Out 028409, Reference Number W028409 0813 (See, Exhibit “GGG” at page DEF0698) as payment for the trailer for the Formula. Defendants/third-party plaintiffs wire transferred \$5,000.00 to RFG, which reflected payment of \$4,500 for a trailer upon which the boat would be secured and a \$500 shipping documentation charge.” (See, Answer by MTL and Solovyev to the Complaint in the matter of Crocus Investments, LLC et al. v. Marine Transport Logistics Inc. et al, FMC Docket No.: 15-04, at paragraph “18”, a copy of which is annexed hereto as Exhibit “HHH”.)” See, Footnote “2” herein, ECF 173-3 at ¶129.

On March 31, 2019, in the matter of World Express, *supra*, MTL, Aleksandr Solovyev, RFG, and others filed a response to the aforesaid Statement of Material Facts, and in paragraph “129” thereto admitted to the nature of the foregoing wire transfer of \$5000 (to wit: that it reflected payment of \$4,500 for a trailer upon which the boat would be secured and a \$500 shipping documentation charge).³

In the matter of World Express, *supra*, on March 20, 2019, complainants also asserted in their Statement of Material Facts that:

“On December 4, 2013, Crocus FZE wired \$4,950 to RFG to pay for boat trailer 2005 NTTRL vin# LW95141. (See, Exhibit “GGG” at page no. DEF0702).” See, Footnote “2” herein, ECF 173-3 at ¶132.

² Copies of the Cross-Motion and all exhibits are located on the Court’s Docket as ECF 173-176 in the matter of World Express, *supra*, and due to their voluminous nature are not annexed hereto, but shall be provided upon request by the Commission.

³ A copy of Respondents’ Response to Complainants’ Statement of Material Facts in the matter of World Express, *supra*, is located on the Court’s Docket as ECF 180 in World Express, *supra*, and is not annexed hereto, but shall be provided upon request by the Commission.

In response to the aforesaid Statement of Material Facts, on March 31, 2019, MTL, Aleksandr Solovyev, RFG, and others also admitted to the nature of the foregoing wire transfer of \$4950 (to wit: that it reflected payment of \$4,950 payment for a for a boat trailer 2005 NTTRL vin# LW95141). See, Footnote “3” herein, ECF 180 at ¶132.

The following may also be relevant as a change in status in this matter on the issue of respondents having made an offer to transport the Formula Boat to Dubai by issuing an invoice through RFG and Complainants having accepted this offer by wiring the respondents the sum of \$69,730.00. The Commission is respectfully asked to note that respondents issued an invoice through RFG in the sum of \$77,280.00 and complainants wired the respondents the sum of \$69,730.00 now confirmed by the record (which includes \$56,280.00 + \$3,500.00 + \$4,950.00 + \$5,000.00 (note: that the \$5000 included \$4,500 for a trailer upon which the Formula would be secured and a \$500 shipping documentation charge and was paid towards the RFG invoice for \$77,280.00).

Respondents Admit That They Are Not In Possession Of The Certificate Of Title For The Boat Trailer For The Formula

As to complainants’ recent Status Report of November 1, 2018 (Document 65 on this docket), the Commission may recall that on pages 13-14 of said Status Report, complainants make reference to their Expert Witness’ Report from World Express, *supra*, and that the Expert Witness explains that in order to ship a boat trailer or a boat on a trailer, a title is required due to the fact that U.S. Customs classifies boat trailers in the same manner as self-propelled vehicles. In the event that a boat on a trailer is being shipped, U.S. Customs would validate the title for the trailer. The Expert Witness Report explains on page “7” thereof as follows:

“Additionally, in the absence of any proof of ownership for the trailer (for example, a Certificate of Title), this trailer with non-existent VIN number could not be exported outside of the United States under U.S. Customs regulations.”

In the matter of World Express, *supra*, on March 20, 2019, complainants additionally asserted in their Statement of Material Facts that:

“Third-party defendants admit that they are not in possession of the Certificate of Title for the Boat Trailer for the Formula. See, Exhibit “RR” at paragraph “12”.” See, Footnote “2” herein, ECF 173-3 at ¶137.

In response to the aforesaid Statement of Material Facts, on March 31, 2019, MTL, Aleksandr Solovyev, RFG, and others also admitted that they are not in possession of the Certificate of Title for the Boat Trailer for the Formula.⁴ See, Footnote “3” herein, ECF 180 at ¶137. We note that in this response to paragraph “137”, to the aforesaid Statement of Material Facts, MTL, Aleksandr Solovyev, RFG, and others also incorporate their prior responses to paragraphs “84” and “86” on issues unrelated to third-party defendants not being in possession of the Certificate of Title for the Boat Trailer for the Formula.

A Certification Was Signed On January 11, 2019 By Alla Solovyeva And Aleksandr Solovyev Which Makes It Undisputed That Their Records Contain No Documents That Could Possibly Be Relevant To The Registration And/or Ownership Of The Boat Trailer For The Formula Bearing VIN Number LW95141 As Set Forth In RFG Invoice # 1204, Such As A Proof Of Registration, Certificate Of Title, Proof Of Insurance, Purchase Invoice Or Otherwise

Complainants’ recent Status Report of November 1, 2018 (on pages 13-14 of the report) also makes reference to their Expert Witness’ Report who concludes that in the absence of any other documents that could possibly be relevant to the registration and/or ownership of the trailer, such as a proof of registration, Certificate of Title, proof of insurance, purchase invoice or otherwise, the trailer under VIN number LW95141 never existed. (specifically VIN# LW95141 – 37 foot trailer, year 2005)”. Specifically, page “7” of the Expert Witness Report states that: “As to the boat trailer identified in Royal Finance Group, Inc. Invoice” # 1204 AS (specifically VIN# LW95141 – 37 foot trailer, year 2005), in the absence of any other documents that could possibly

⁴ In passing, we note that on July 7, 2017, the helpdesk of the New York office of U.S. Customs and Border protection advised that: “Under 19 CFR 192.2, export validation requirements do not apply to watercraft, including jet skis and boats. The trailer however is considered a self-propelled vehicle and is subject to title validation at the CBP Car Desk” (annexed to the accompanying Nussbaum Certification as Appendix “A”).

be relevant to the registration and/or ownership of the trailer, such as a proof of registration, Certificate of Title, proof of insurance, purchase invoice or otherwise, the trailer under VIN number LW95141 never existed.”

In the matter of World Express, *supra*, the parties also participated in a discovery conference on or about July 30, 2018, which resulted in an Order from the Court, dated July 31, 2018 Order [ECF 147], which required as follows:

On or before August 14, 2018 Plaintiff shall produce any and all remaining documents responding to Paragraphs 13, 14, and 15 of the Court’s May 21, 2018 Order and ***submit a certification that the documents provided are all documents found after a complete and thorough search.*** If no responsive documents are found, Plaintiff shall submit a certification on or before August 14, 2018 stating that, after a complete and thorough search, no responsive documents exist.

After respondents herein provided the above referenced Court Ordered Certification on September 21, 2018, the undersigned counsel for complainants herein (who are defendants/third-party plaintiffs in that matter) filed a letter with the Court (ECF 159) on December 2, 2018 seeking an Order from the Court compelling, among other things, the disclosure of records regarding the trailer bearing VIN# LW95141 and wherein the undersigned explained to the Court that the certification provided by respondents herein “...is undated, and fails to provide details regarding the search performed, where, by whom, what records were searched[.]” and “***it is unclear whether additional documents remain outstanding[.]***”

The Court subsequently issued an Order on January 9, 2019 (ECF 163 which will be provided if necessary upon request by the Commission) wherein the Court granted the undersigned’s request *in part* and specifically Ordered respondents to provide a certification that bears a date of execution⁵ but also explained, in part, in footnote “3” of the Order as follows:

⁵ The Court specifically ordered as follows: “...Defendants’ request that the Court compel the production of...a Certification ***establishing whether unproduced records remain regarding the trailer bearing VIN# LW95141*** is DENIED, except that Plaintiff shall serve a new certification that bears the date of execution by January 17, 2019...”.

The Court now considers Defendants' request for "(c) a Certification regarding documents responding to paragraphs 13, 14, and 15 of the Court's May 21, 2018 Order[] and (d) a Certification establishing whether unproduced records remain regarding the trailer bearing VIN# LW95141." Defendants complain that the certification provided by Plaintiff "is undated, and fails to provide details regarding the search performed, where, by whom, what records were searched[]" and "it is unclear whether additional documents remain outstanding[.]"...Defendants also complain that the certification does not make clear whether there are other, unproduced documents. ***That position is not well taken. Indeed, Plaintiff's certification signed by both Alla Solovyeva and Aleksandr Solovyeva states: "Plaintiff/Third-Party Defendants certify that after a complete and thorough search, no additional responsive documents exist, other than what was already provided."***

In the matter of World Express, *supra*, discovery has long since been closed, and respondents never produced documents that could possibly be relevant to the registration and/or ownership of the trailer, such as a proof of registration, Certificate of Title, proof of insurance, purchase invoice or otherwise. On January 11, 2019, respondents ultimately produced the Certification in accordance with the Court's Order (annexed hereto as Appendix "A"), making it clear that "no additional responsive documents exist, other than what was already provided" (and that respondents did not provide documents that could possibly be relevant to the registration and/or ownership of the trailer, such as a proof of registration, Certificate of Title, proof of insurance, purchase invoice or otherwise).

Upon Information And Belief, On May 29, 2013, Andrey Tretiyakov Sent An Email To Respondents For Purposes Of Reconciliation With A Spreadsheet Attachment Indicating That MTL Maintained A Credit (Due To Overpayment By Complainants) In The Sum Of \$15,207 US And This Email Also Makes Reference To The Monterey And Chaparral At Issue Herein

In the matter of World Express, *supra*, on March 20, 2019, complainants also asserted in their Statement of Material Facts that:

"Andrey Tretiyakov communicated with Solovyev using the email address "tango333@rambler.ru". See, Footnote "2" herein, ECF 173-3 at ¶12.

In response to the aforesaid Statement of Material Facts, on March 31, 2019, MTL, Aleksandr Solovyev, RFG, and others also admitted Andrey Tretiyakov communicated with Solovyev using the email address tango333@rambler.ru. See, Footnote “3” herein, ECF 180 at ¶12.

In the matter of World Express, *supra*, on March 20, 2019, complainants additionally asserted in their Statement of Material Facts that:

“On May 29, 2013, Andrey Tretiyakov sent an email to Solovyev for purposes of reconciliation with a spreadsheet attachment indicating that MEAA had overpaid MTL the sum of \$15,207.” See, Footnote “2” herein, ECF 173-3 at ¶83.

In response to the aforesaid Statement of Material Facts, on March 31, 2019, MTL, Aleksandr Solovyev, RFG, and others did not dispute that Andrey Tretiyakov sent an email to Solovyev for purposes of reconciliation and MTL had maintained a credit (due to overpayment) in the sum of \$15,207, rather, they stated that: *“[i]t is not clear whether this involves all of the subject boats.* Objection on the basis of the translation not being certified.” See, Footnote “3” herein, ECF 180 at ¶83. (Emphasis added).

In the matter of World Express, *supra*, and in response to the Court’s directives to provide discovery, counsel for MTL, Aleksandr Solovyev, RFG, and others provided a Court Ordered discovery response (annexed as Appendix “B” to the accompanying Nussbaum Certification). The Commission is respectfully referred to paragraph “3” thereof wherein MTL, Aleksandr Solovyev, RFG, and others explain that “Attached as pages 7-9, is an email that could be relevant as the attachment to such *appears to reference some of the subject boats.*” (Emphasis added).⁶ The email referred to in pages 7-9 of the discovery response (to which

⁶ As explained above, in the matter of World Express, *supra*, discovery has long since been closed. To the extent that respondents herein could have, prior to close of discovery in that matter, provided admissible evidence regarding an explanation as to how the credit of \$15,207 could have arguably been applied to other charges they did not. That time has passed, and no such information exists. Accordingly, the doctrine of Judicial Estoppel would prevent them from proffering any explanation now as to how said monies were applied elsewhere. See, e.g., Jackson v. WellSpan Health, No. 1:13-CV-1349, 2014 WL 414251, at *1 (M.D. Pa. Feb. 4, 2014) (the doctrine of judicial

complainants herein were not a party) is dated May 29, 2013, and was provided by respondents, *for the first time*, on August 14, 2018. Respondents' Certification of January 11, 2019 also confirms that to the extent there would be any other documents addressing respondents' concern, as stated above, that *"[i]t is not clear whether this involves all of the subject boats..."* that it is now clear that no other such documents exist.

The Commission is respectfully referred to the Certification of Marcus A. Nussbaum which has been executed and submitted contemporaneously with the instant Status Report, and which explains as follows:

Page "7" of the supplemental response is an email in Russian, dated May 29, 2013 from Tango333@rambler.ru. A translation of the email, which I did myself, along with a copy of the original email is annexed hereto as Exhibit "C". The email provides as follows:

"Hello. In the original invoice, the price for the boats is 28,192 US but you wrote to me 29,192 US – you probably made a mistake. ***You have my credit of 15,207 US (look at the file)***. Where are the documents regarding the Regal, I only have a copy of the dock receipt and invoice, is this enough?" (Emphasis added).

Page "7" of the supplemental response also has a photo of a Microsoft Word document icon, with Russian text underneath it which reads: "Completed purchases.doc".

Pages "8" and "9" of the supplemental response are two spreadsheets in which I have translated the Russian text on the two spreadsheets in English, which are also annexed hereto.

estoppel is premised on the concept of culpable inconsistency, the idea that parties should not be able to materially shift their positions in litigation in an expedient fashion that favors tactical advantage over the truth. In order to promote consistent candor in litigation, judicial estoppel permits courts to sanction parties who adopt irreconcilably inconsistent positions in litigation by precluding them from pursuing claims that are wholly inconsistent with the positions they have previously taken in some other lawsuit).

Page “8” of the supplemental response contains text in Russian^{7, 8}, which I have translated myself and which states as follows:

1	3/28/2013	INVOICE # 1148AT	2005 BAYLINER TROPHY 2002	\$10,530	SERGEY	PAID
2	3/28/2013	INVOICE # 1149AT	2004 MAXUM BOAT 1905	\$9,655	SERGEY	PAID
3	4/17/2013	INVOICE # 1164AT	2004 BAYLINER 1905	\$8,470	SERGEY	PAID
4	5/7/2013	INVOICE # 1177AT	2006 CHAPPAREL 190	\$15,455	SERGEY	PAID
5						
6						
7	4/4/2013	INVOICE # 1154AT	2006 SEA REY 270	\$12,855	ALEXANDER	PAID
8	4/18/2013	INVOICE # 1167AT	2002 CHAPPAREL 225 SSI	\$10,805	ALEXANDER	PAID
9	4/18/2013	INVOICE # 1168AT	2011 MONTEREY 210	\$14,855	ALEXANDER	PAID
10	4/18/2013	INVOICE # 1165AT	2005 REGAL 2865	\$37,845	ALEXANDER	PAID
11	4/16/2013	INVOICE # 1158AT	2013 MERSEDES GL 450 4 MT	\$65,083	ALEXANDER	PAID
12	4/22/2013	INVOICE # 1175AT	2005 FORD F 2500	\$7,500	ALEXANDER	PAID
13	4/24/2013	INVOICE # 1174AT	2007 FOUR WINNS 224 SSI	\$17,805	ALEXANDER	PAID

⁷ To the extent that the aforementioned spreadsheet makes reference to a “Sergey”, we note for the Commission’s reference that page “13” of the ID, at FF no.: 38 explains as follows:

“Safonov or a Middle East Asia associate "Sergey" had final decision-making authority about which boats to buy. (RX 63 (Dep. of Safonov 29: 1-12).)”

Copies of the wires for payments from Sergey (including a wire transfer on amount of \$15,455 for Invoice # 1177AT) which were transferred to the bank account of respondents for lines 1 through 4 of the aforementioned spreadsheet can be provided upon request by the Commission.

⁸ The Commission is respectfully asked to note that lines 7 through 13 of the aforementioned spreadsheet add up to \$166,748 which does not coincide with the sum of \$165,348 on the following spreadsheet (on the next page) next to the line which reads “Total Amount Purchased”. The undersigned cross referenced the invoices identified in lines 7 through 13 and it was ascertained that line 13 (to wit: INVOICE # 1174AT) for the sum of \$17,805 may have been entered in error. Annexed hereto as Appendix “B” is a copy of INVOICE # 1174AT which was produced in the matter of World Express, supra, which indicates that this invoice was for the sum of \$16,405. If the sum of \$16,405 is substituted in place of the sum of \$17,805, then these invoices in lines 7 through 13 properly add up to the sum of \$165,348.

Page “9” of the supplemental response contains text in Russian⁹, which I have translated myself and which states as follows:

ALEXANDER TRANSFER MONEY			
AMOUNT ALREADY TRANSFERRED	50 555 US		
AMOUNT ALREADY TRANSFERRED	65 000 US		
AMOUNT ALREADY TRANSFERRED	35 000 US		
AMOUNT ALREADY TRANSFERRED	30 000 US		
TOTAL AMOUNT TRANSFERRED	180 555 US		
TOTAL AMOUNT PURCHASED	165 348 US		
CREDIT REMAINING	15 207 US		
BALANCE MTL	15 207 US		

The Commission may also recall that findings of fact nos.: 44 and 51 in the ID explained as follows:

44. On April 18, 2013, RFG sent invoice 1168AT to Andrey Tretyakov at Middle East Asia for the purchase of a boat identified as 2011 Monterey 20', VIN RGFMC1931011. (CX011.)
51. On May 7, 20 13, RFG sent invoice 1177 AT to Middle East Asia for the purchase of a boat identified as 2008 Chaparral, VIN FGBL 3738D808. (CX 007.)

The foregoing is being brought to the Commission’s attention in this Status Report inasmuch as it may constitute a change in status in this matter due to the fact that this information is new, material, and relevant to the ID, in that as explained herein: (1) complainants ***never previously had access*** to the email from Andrey Tretiyakov of May 29, 2013 and which indicates that respondents received wires in payment for the subject boats; (2) a wire transfer

⁹ To the extent that the aforementioned spreadsheet makes reference to a “Alexander”, we note for the Commission’s that “Alexander” is a reference to the owner of complainants herein, Alexander Safonov inasmuch as respondents’ bank records (copies of which will be provided upon request by the Commission) indicate that the sums transferred, to wit: \$50,555, \$65,000, \$35,000, and \$30,000 were transferred by complainants to the bank account of respondents herein.

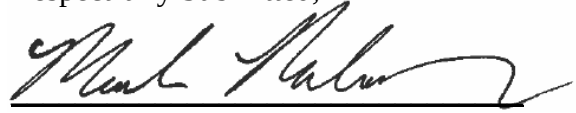
from 'Sergey' in the amount of \$15,455 was paid and applied to Invoice # 1177AT for the export of the Chaparral Boat from U.S. to Dubai; (3) the email contained an attachment entitled "Completed purchases.doc"; (4) the email explained that "You have my credit of 15,207 US (look at the file)"; (5) that MTL maintained a credit as of May 29, 2013 (due to overpayment by complainants) in the sum of \$15,207 US; (6) this email and spreadsheets also make reference to the Monterey and Chaparral at issue herein, as well as payment to respondents for charges related to these boats (and are listed in the spreadsheet at invoices 1168AT and 1177AT); (7) the credit should have been applied by MTL to any future ocean freight allegedly due and owing by complainants; (8) there exists no records indicating that the credit was applied by MTL to any future ocean freight allegedly due and owing by complainants; and (9) in this proceeding, MTL or Solovyev never provided this information (to wit: the email explaining "You have my credit of 15,207 US (look at the file)" to complainants or to the Commission.

In closing, the foregoing, along with the attachments annexed hereto are respectfully submitted as same reflect a dramatic 'change in status' of this case with regard to the parties herein so as to inform the Commission of said change in status as same may reflect upon or be determinative of the pending Exceptions, as well as Complainants' Second Petition to Reopen the Proceedings.

As always, complainants thank the Commission for its many continuing courtesies and considerations in this case.

Dated: April 30, 2019
New York, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
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Brooklyn, NY 11224
Tel: 888-426-4370
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' STATUS REPORT, CERTIFICATION OF MARCUS A. NUSSBAUM, and APPENDIX** upon Respondents' Counsel at the following address:

Garry Pogil, Esq.
112 West 34 Street, 18 Floor
New York, NY 10120

by first class mail, postage prepaid, and by email to: garry.pogil@gmail.com.

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

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Dated: New York, New York
April 30, 2019